

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. PY 00-02

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
ANNE HATFIELD, M.S., LPC, LICENSE NO. 1386

Respondent.

IT IS HEREBY STIPULATED and agreed by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Anne Hatfield, M.S., LPC ("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.
2. The State Board of Licensed Professional Counselor Examiners granted respondent a license to practice professional counseling in Colorado on May 17, 1996. Respondent has been licensed to practice professional counseling since that date and was so licensed at all times relevant to the events resulting in this stipulation and order. She holds license number 1386.
3. On or about March 25, 1998 and April 10, 1998, the Board received complaints regarding respondent's practice of professional counseling and psychotherapy alleging practice below generally accepted standards, practice outside her area of training, experience or competence, dual relationships, failure to refer a client, and failure to consult. All of these alleged actions are violations of the Colorado Mental Health Statute.
4. Following review of the complaint, response, and investigation, the Board referred this matter to the Attorney General's office for disciplinary action regarding respondent's license to practice professional counseling in Colorado.

5. Respondent understands she has the right to a formal disciplinary hearing, pursuant to C.R.S. §12-43-224, with respect to the complaints filed against her. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to a hearing; relieves the Board of its burden of proving the facts and conduct contained in the complaint; gives up her right to present a defense by oral and documentary evidence; and gives up her right to cross-examine witnesses. Respondent understands that, pursuant to C.R.S. §12-43-224(5), she has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to appeal or otherwise to contest the validity of the final Board order entered pursuant to this stipulation.

6. Respondent desires to resolve this matter by voluntarily surrendering her license to practice professional counseling in Colorado. Respondent is surrendering her license in lieu of proceeding with the pending summary suspension and disciplinary action against her license. It is understood that the Board order entered pursuant to this stipulation will revoke respondent's license to practice professional counseling in Colorado and she will be rendered ineligible to apply for any license, registration, or listing issued under Article 43, Title 12 of Colorado Revised Statutes until more than three years have elapsed from the date of the surrender of license, as provided in C.R.S. §12-43-224(3)(a)(II).

7. Respondent hereby freely and voluntarily relinquishes and surrenders her license as a Licensed Professional Counselor in the State of Colorado.

8. Respondent enters into this stipulation and order voluntarily, and after being fully advised both as to her right to a hearing and as to the consequences of this stipulation and order.

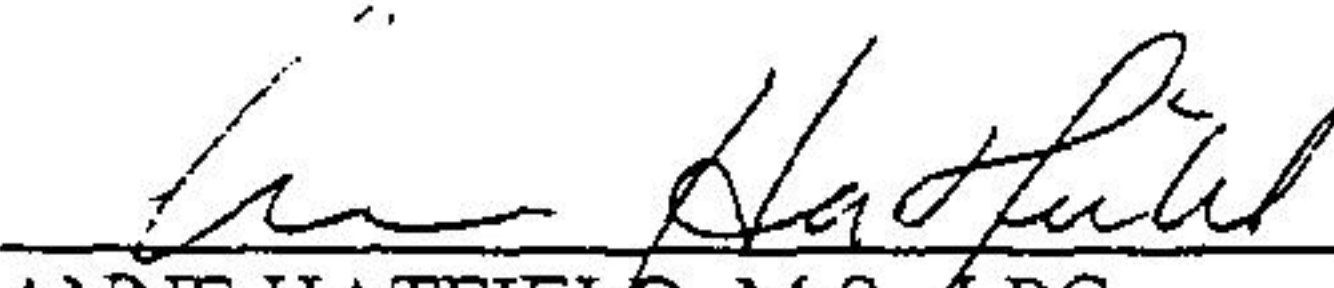
9. This Board order possesses the same force and effect as an order entered as a result of a formal disciplinary proceeding held pursuant to C.R.S. §§12-43-224 and 24-4-105, and it revokes respondent's professional counselors license and is considered an order of revocation for all purposes.

10. No agreement, understanding, representation, or interpretation not contained in this stipulation and order may be used to vary or to contradict its terms.

11. Each provision of this stipulation and order is separate. In the event of litigation involving compliance with the terms of this stipulation and order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the stipulation and order; and the parties will be obligated by the Board-construed or judicially-construed parts of the stipulation and order as if they were part of the original stipulation and order.

12. This stipulation and order shall take effect on acceptance and signature by the Board.

13. This stipulation and order is a public record.


ANNE HATFIELD, M.S., LPC
Respondent

DATED: 5-2-2000

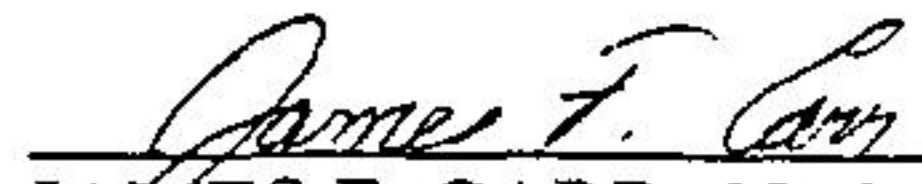
ACCEPTED, SIGNED, AND ORDERED this 11th day of MAY, 2000.

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS


SUSAN L. GARCIA, LPC
Board Chair

APPROVED AS TO FORM

FOR THE ATTORNEY GENERAL:



JAMES F. CARR, 9343
Senior Assistant Attorney General
Regulatory Law Section

Attorneys for State Board of Licensed
Professional Counselor Examiners

1525 Sherman Street, 5th Floor
Denver, Colorado 80203
Telephone: 303/866-5283
AG Alpha No. RG PC DLLRK
AG File No. RLJC0087

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS
STATE OF COLORADO

Case No. PY 00-02

ORDER OF SUMMARY SUSPENSION, NOTICE OF DUTY TO ANSWER,
NOTICE TO SET AN INFORMAL PREHEARING CONFERENCE,
NOTICE OF HEARING, AND NOTICE OF CHARGES

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING
THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE
STATE OF COLORADO OF ANNE HATFIELD, M.S., LPC, LICENSE NO. 1386 AND
DOUGLAS HATFIELD, M.Ed., LPC, LICENSE NO. 1387,

Respondents.

TO: Anne Hatfield, M.S., LPC
Douglas Hatfield, M.Ed., LPC
1616 Hewitt, Suite 300
Everett, Washington 98201

ORDER OF SUMMARY SUSPENSION

The State Board of Licensed Professional Counselor Examiners ("Board"), having reviewed complaints, responses, replies, an investigative report and other available information as to the matters referenced below, HEREBY FINDS:

1. The respondents, Anne Hatfield, M.S., LPC and Douglas Hatfield, M.Ed., LPC were licensed as Professional Counselors in the State of Colorado on May 17, 1996. Respondents were licensed to practice professional counseling and practiced professional counseling in the state of Colorado at all times relevant to this matter. Respondents hold professional counselor licenses number 1386 for Anne Hatfield and 1387 for Douglas Hatfield.
2. The Board has jurisdiction over respondents and the subject matter herein.
3. The Board reviewed information regarding respondents' practices of professional counseling. Based on this information which is detailed in the attached Notice of Charges, reasonable grounds exist to believe, and the Board finds, that the public health, safety, and welfare

imperatively require that emergency action be taken to prevent respondent from practicing professional counseling in the state of Colorado.

THEREFORE, IT IS HEREBY ORDERED that the licenses of Anne Hatfield, M.S., LPC and Douglas Hatfield, M.Ed., LPC to practice professional counseling in the state of Colorado be and hereby are summarily suspended pending proceedings to determine whether respondents' licenses to practice professional counseling should be further disciplined in accordance with C.R.S. §§12-43-223, 12-43-224, and §24-4-104(4).

DATED this 29th day of March, 2000.


AMOS D. MARTINEZ
Program Administrator
State Grievance Board

NOTICE OF DUTY TO ANSWER

YOU ARE HEREBY NOTIFIED that, pursuant to C.R.S. §24-4-105(2)(b), you are hereby required to file a written answer to the attached Notice of Charges with the Division of Administrative Hearings, 1120 Lincoln Street, Suite 1400, Denver, Colorado 80203, within thirty (30) days after the mailing of this Notice of Duty to Answer, Notice to Set, Notice of Hearing and Notice of Charges. You must also mail a copy of such answer to the attorney who has signed this Notice of Duty to Answer, Notice to Set, Notice of Hearing and Notice of Charges below.

If you fail to file your written answer within the applicable time period, an order entering a default decision may be issued against your Professional Counselors license for the relief requested in the Notice of Charges, or such other penalties which may be provided for by law, without further notice to you.

NOTICE TO SET AN INFORMAL PREHEARING CONFERENCE

YOU ARE HEREBY NOTIFIED that counsel for petitioner, will appear at 9:00 a.m. on Friday, April 28, 2000, in the Office of the Division of Administrative Hearings, 1120 Lincoln Street, Suite 1400, Denver, Colorado 80203, in order to set a date, time, and location for an informal prehearing conference regarding the following Notice of Charges. At the informal prehearing conference the parties will set a hearing date, determine an expedited discovery schedule and obtain motion dates and prehearing conference dates as necessary. You may be present in person or by counsel or you may make prior arrangements to be reached by telephone at the time and date specified above, by contacting the undersigned attorney prior to the day of setting.

NOTICE OF HEARING

YOU ARE HEREBY NOTIFIED that pursuant to C.R.S. §§12-43-224 and 24-4-104 and 105, that a hearing will be held before an authorized Administrative Law Judge at a time and location to be determined at the informal prehearing conference, for the purpose of determining whether the licenses to practice professional counseling in Colorado of Anne Hatfield, M.S., LPC and Douglas Hatfield, M.Ed., LPC should be revoked or suspended and other lawful discipline imposed on their practice of professional counseling for a violation or violations of C.R.S. §§12-43-222(1)(b), 12-43-222(1)(g), 12-43-222(1)(h), 12-43-222(1)(i), 12-43-222(1)(j), 12-43-222(1)(k), 12-43-222(1)(m), 12-43-222(1)(p), and 12-43-222(1)(t).

YOU ARE FURTHER NOTIFIED that at the hearing in this matter you shall have the right to appear in person and/or by legal counsel; to present evidence in your own behalf; to cross-examine any witnesses presented by the Petitioner; and to rebut any evidence presented by the Petitioner. You may also have subpoenas issued on your behalf upon request to the Administrative Law Judge.

NOTICE OF CHARGES

Petitioner charges and alleges as follows:

1. Anne Hatfield, M.S., LPC and Douglas Hatfield, M.Ed., LPC ("respondents,") were licensed as professional counselors in the State of Colorado on or about May 17, 1996. Respondents practiced professional counseling at all times relevant herein. They hold professional

counseling licenses number 1386 for Anne Hatfield, M.S., LPC and 1387 for Douglas Hatfield, M.Ed., LPC.

2. The State Board of Licensed Professional Counselor Examiners ("Board,") has jurisdiction over the person of respondents and the subject matter of this Notice of Charges.

3. Respondent Anne Hatfield entered into a professional and therapeutic relationship with client TH on or about December 1995 for the purpose of providing TH with professional counseling and psychotherapy, as defined in C.R.S. §§12-43-601(5)(a) and 12-43-201(9).

4. Respondent Douglas Hatfield entered into a professional and therapeutic relationship with clients MKB and TH on or about January 1996 for the purpose of providing MKB, TH and TH's grandparents with professional counseling and psychotherapy as defined in C.R.S. §§12-43-601(5)(a) and 12-43-201(9).

5. Respondents Anne Hatfield and Douglas Hatfield were involved in various roles in the treatment of TH and MKB until the therapeutic relationships were terminated on or about October 1, 1997.

6. Respondent Anne Hatfield was employed as a counselor for Centennial Mental Health Center (Centennial) from prior to December 1995 until June 1997.

7. At the time respondents provided the treatment involved in this matter TH was five to seven years old. TH's mother ("MKB") was her legal guardian and custodian at all time during this treatment relationship.

COUNT I

8. Petitioner realleges paragraphs 1 through 7 as if fully set forth herein.

9. Respondents had multiple therapeutic relationships with TH and MKB from December 1995 until October 1997. Respondent Anne Hatfield was primary therapist for TH from December 1995 until November 1996. From November 1996 until treatment terminated in October 1997 she was consultant and co-therapist for TH's treatment with Mr. Hatfield. Respondent Douglas Hatfield was therapist for MKB, TH, and TH's grandparents in family therapy from January 1996 until treatment terminated in October 1997. He was primary therapist for TH from November 1996 until October 1997.

10. Anne Hatfield referred MKB, TH, and TH's grandparents to Douglas Hatfield for family therapy in January 1996. Anne Hatfield gave MKB only one person who should be seen for family therapy, Douglas Hatfield. Ms. Hatfield told MKB that family treatment was needed and Mr. Hatfield was the person to go to. This referral was made despite the fact that Anne Hatfield was married to Douglas Hatfield and there were other family therapy providers available in the

area.

11. In November 1996 MKB started working for Centennial. Ms. Hatfield also worked for Centennial at that time. Centennial policy prohibited Ms. Hatfield from treating MKB's child, because of boundary and dual relationship concerns. Ms. Hatfield transferred the treatment of TH to her husband, Douglas Hatfield in November 1996. Ms. Hatfield continued her involvement in the treatment of TH as consultant and co-therapist with her husband, Douglas Hatfield.

12. During the course of treatment TH's grandparents were providing day care for TH. Ms. Hatfield told MKB that the grandparents should not have to provide day care and recommended another client, CR, to provide day care. Ms. Hatfield informed MKB that CR had a child with Reactive Attachment Disorder ("RAD") so Ms. Hatfield felt CR would be a good person to provide day care. Ms. Hatfield also told MKB that CR could use the money.

13. Respondents by the above described acts and omissions acted or failed to act in manner that does not meet generally accepted standards of practice, in violation of C.R.S. §12-43-222(1)(g).

14. Respondents by the above described acts or omissions maintained relationships with clients that are likely to impair such persons professional judgment or increase the risk of client exploitation in violation of C.R.S. §12-43-222(1)(i).

15. Respondents by the above described acts or omissions exercised undue influence on the client in such a manner as to exploit the client for the financial gain of the respondents or a third party in violation of C.R.S. §12-43-222(1)(j).

COUNT II

16. Petitioner realleges paragraphs 1 through 15 as if fully set forth herein.

17. Respondents diagnosed TH as having RAD. This diagnosis was made without ruling out a number of other diagnoses which TH's symptoms would require considering. There was no consultation regarding this diagnosis despite TH's complex symptomology and elements of her history, which would indicate against a RAD diagnosis. Respondents made a referral to a psychiatrist resulting in a diagnosis of bipolar disorder. Another referral made but not followed by MKB or respondents. Respondents did nothing else to get additional consultation on their diagnosis and assessment of TH. Respondents developed a RAD specialty, including the extensive and expensive treatment that accompanied this diagnosis. TH and many other clients of respondents were diagnosed with RAD. Failing to adequately consider other diagnoses or obtain appropriate consultation on the diagnosis would not meet generally accepted standards of practice.

18. Respondent's treatment for their RAD diagnosis involved what is called an intensive

("intensive"). This intensive took place over two weeks where TH, a six year old, was removed from her home and school. Without warning or preparation TH was removed from her home and placed in the home of a couple she had never met or had any prior contact with, the Cs. The room she was provided in the C's home contained only a bed and light bulb. An alarm was placed on the door to sound if the child left the room for any reason, including going to the bathroom and eating meals. At the start of the two weeks TH asked where her mother was and when she would see her. She was not given an answer, but inconsistent statements such as "when you are 16" or "I just don't know" were the responses given. During this two week period TH had therapy sessions with respondents. The therapy sessions included what is termed holding therapy where Mr. Hatfield and other therapy providers physically restrained TH. During the therapy sessions the Hatfields used a number of questionable techniques, such as showing TH pictures of her pets and grandparents and telling her to say good bye to the grandparent or pet while tearing up the pictures; physically forcing TH to put her fingers in her mouth; and exacerbating her fears through the way he handled her reports of fearing noises while left alone. Another technique was to physically restrain TH and deny her the use of the bathroom.

19. During the intensive Mr. Hatfield was in the room with TH. Also in the room was a woman named CR who was supposed to act as a mother figure while Mr. Hatfield acted as a father figure. CR's qualifications for involvement as co-therapist in this therapeutic process was that she had a child who the Hatfields had also diagnosed with RAD. She had no training in providing psychotherapy, could not legally provide psychotherapy in Colorado, and was inappropriate in her actions as co-therapist.

20. Ms. Hatfield participated in the intensive by observing the room where Mr. Hatfield and CR were through a video camera/television and giving instructions to CR through an earpiece. Ms Hatfield also consulted with Mr. Hatfield after each session as they discussed the matters that took place during the therapy sessions. Ms. Hatfield was supposedly not participating in the treatment of TH because of Centennial policy due to employment of MKB with Centennial and the boundary and dual relationship problems it raised. MKB was also a client in the therapeutic process involving TH. There is no boundary or delineation on where the family therapy with MKB and TH ended and individual therapy with TH began. It was a therapeutic process that involved both MKB and TH with both Hatfields providing therapy to MKB and TH.

21. Respondents did not have a release of confidentiality from MKB for CR or the Cs who participated in the intensive. CR and the Cs received confidential information from respondents. Respondents also did not have a written agreement for the placement of TH with the Cs.

22. Respondents failed to appropriately prepare TH for being removed from her home and school and placed in another home with strangers. There was also a failure to clearly establish a therapeutic framework with TH at the start of the intensive which was apparent from the tapes of the initial session where TH appeared disoriented and repeatedly asked where her mother was and wanted to know what was happening.

23. Respondents used inappropriate and inconsistent methods in dealing with TH during the intensive. These actions included giving evasive, inconsistent, and inappropriate answers to questions, using pressure tactics, exacerbating her fears, and frightening TH rather than helping her contain her emotions. These actions reflect a lack of knowledge of child development and the capabilities of a six year old to handle some of the methods used. They also indicate lack of knowledge about and failure to establish an effective therapeutic relationship with TH.

24. Respondents failed to question the possibility of psychotic features, despite indications during therapy that such features might be present. It is noteworthy that TH was evaluated two years later at Children's Hospital and reported hearing voices telling her to kill herself because she was stupid.

25. Respondents did not provide CR with adequate training to allow her to function appropriately in the intensive. She was not qualified to be a co-therapist with respondents in the therapy with TH, but respondents used her in this capacity. The C's were not qualified to act as co-therapists or provide therapy to TH, but they were used in this manner. There were a number of occasions during the intensive where respondents left CR and the Cs.

26. Respondents violated the confidentiality of MKB and TH by giving their names to a man in Yuma County who called MKB one night after TH's intensive to talk with her about the intensive and the Hatfields. The man stated that the Hatfields gave him MKB's name as a reference because her child had just gone through the intensive.

27. Respondents by the above described acts and omissions acted or failed to act in a manner that does not meet generally accepted standards of practice in violation of C.R.S. §12-43-222(1)(g).

28. Respondents by the above described acts and omissions performed services outside of their areas of training, experience or competence in violation of C.R.S. §12-43-222(1)(h).

29. Respondents by the above described acts and omissions violated client confidentiality required under C.R.S. §12-43-218 in violation of C.R.S. §12-43-222(1)(g) and (b).

30. Respondents by the above described acts or omissions failed to obtain a consultation or perform a referral when such failure is not consistent with generally accepted standards of care in violation of C.R.S. §12-43-222(1)(m).

COUNT III

31. Petitioner realleges paragraphs 1 through 30 as if fully set forth herein.

32. During the course of the therapeutic relationship respondents had a number of absences from the community and failed to provide therapeutic coverage during these absences. Apparently respondents assumed the services of the mental health center would be used for therapeutic coverage during their absences, but they made no arrangements for such coverage and did not provide clients MKB and TH with information on coverage during their absences.

33. During the course of the therapeutic relationship respondents were the only therapists provided treatment to TH. Other than a medical consult that resulted in a bipolar disorder diagnosis respondents failed to consult with other therapists regarding the diagnosis and treatment of TH. Respondents report that they consulted with each other, but they were in reality a treatment team. In providing therapy to TH they failed to consult with other therapists, other than each other, regarding the diagnosis and treatment of TH.

34. Despite the lack of consultation or referrals respondents continued treatment of TH over an extended period of time providing extensive therapy with no observable benefit or improvement for TH. There was no demonstrable necessity for the Hatfields continuing to provide the treatment they did. The Hatfields failed to terminate TH's treatment despite the lack of progress or benefit and the likelihood that no progress or benefit would result from additional treatment.

35. In September 1997 Andrea Fitzgerald, LCSW started working for Centennial. Upon reviewing the charts previously handled by Ms. Hatfield Ms Fitzgerald found that approximately fifty percent of the children treated by Ms. Hatfield were diagnosed with RAD. This is an extremely high percentage of cases to have this disorder and inconsistent with appropriate use of the RAD diagnosis. The RAD diagnosis involves a severe disorder found in very disturbed clients and requiring extensive treatment. The behavior described in the charts was more consistent with a diagnosis of Attention Deficit/Hyperactive Disorder or Oppositional Behavior rather than the RAD diagnosis. In some cases the diagnosis had been changed from Post Traumatic Stress Disorder ("PTSD") to RAD. Children with a RAD diagnosis would be involved in the intensive treatment and respondents were the only therapists providing such treatment in all of northeastern Colorado. This intensive treatment is expensive for the client families and lucrative for the Hatfields who provided the treatment.

36. Respondents by the above described acts and omissions acted or failed to act in a manner that does not meet generally accepted standards of practice in violation of C.R.S. §12-43-222(1)(g).

37. Respondents by the above described acts and omissions failed to terminate the relationship with client TH when it was reasonably clear that the client was not benefiting from the relationship and was not likely to gain such benefit in the future in violation of C.R.S. §12-43-222(1)(k).

38. Respondents by the above described acts and omissions failed to obtain a consultation or perform a referral when such failure is not consistent with generally accepted standards of care in

violation of C.R.S. §12-43-222(1)(m).

39. Respondents by the above described acts and omissions engaged in the administration, without clinical justification, of treatment that is demonstrably unnecessary, or ordered or performed, without clinical justification, any service or treatment that is contrary to generally accepted standards of practice in violation of C.R.S. §12-43-222(1)(t)(II) and (III).

COUNT IV

40. Petitioner realleges paragraphs 1 through 39 as if fully set forth herein.

41. Respondents failed to provide MKB or TH with a mandatory disclosure statement as required by C.R.S. §12-43-214 in violation of C.R.S. §12-43-222(1)(p) and (b).

COUNT V

42. Petitioner realleges paragraphs 1 through 41 as if fully set forth herein.

43. Ms Hatfield acted as primary therapist for TH from December 1995 to November 1996. Starting in November 1996 until therapy ended in October 1997 Ms. Hatfield acted as consultant and co-therapist with Mr. Hatfield. During the time from November 1996 until June 1997 Ms. Hatfield was also the co-worker of MKB, TH's mother, who was a client in both family therapy with TH and other treatment of TH. It is clear that both TH and MKB were clients and respondents sought to change the behavior of both TH and MKB in their treatment activities.

44. Respondents involved CR in TH's intensive. CR functioned as a co-therapist by acting as the female presence in the sessions with TH. She also participated in the holding therapy of TH without physical or audio supervision by respondents. CR was also a client of respondents as her daughter was also being treated by respondents for a diagnosis of RAD. CR had no training as a psychotherapist and could not legally function as a psychotherapist in Colorado.

45. Respondents treated J, the child of CR, for RAD. As part of their treatment of J respondents had J living with different people, including MKB and TH. This took place while Ms. Hatfield was a co-worker of MKB and while TH and MKB were clients of respondents. CR was involved in the treatment of TH as a co-therapist during the intensive while she and her daughter were clients of respondents. MKB and TH were clients of respondents when respondents asked them to have J live with them.

46. During the treatment of TH and J, both diagnosed by respondents as having RAD, the

boundaries regarding others involved with treatment of the clients, other clients, and co-workers of respondents were either not appropriately respected or were non-existent. The roles of respondents in the treatment of TH, MKB, CR, J, and others were confused and inappropriate.

47. Respondents by the above described acts and omissions violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of any provision or term of Article 43 of Title 12 of the Colorado Revised Statutes in violation of C.R.S. §12-43-222(1)(b).

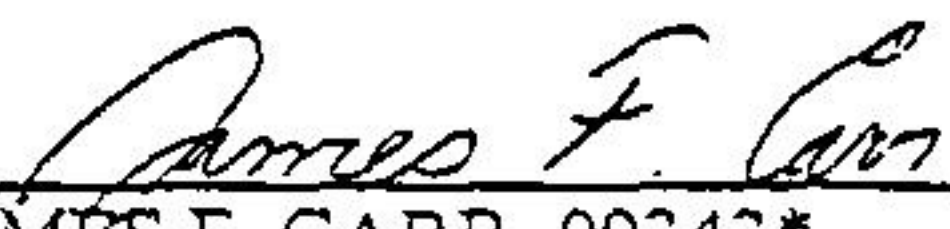
48. Respondents by the above described acts or omissions acted or failed to act in a manner that does not meet generally accepted standards of practice in violation of C.R.S. §12-43-222(1)(g).

49. Respondents by the above described acts or omissions maintained relationships with clients that are likely to impair their professional judgment or increase the risk of client exploitation in violation of C.R.S. §12-43-704(1)(i).

50. Respondents by the above described acts or omissions engaged in the administration, without clinical justification, of treatment which is demonstrably unnecessary, or ordered or performed, without clinical justification, any service or treatment which is contrary to generally accepted standards of practice in violation of C.R.S. §12-43-222(1)(t)(II) and (III).

WHEREFORE, petitioner prays that the respondents' licenses to practice professional counseling be revoked or suspended, and their practice of psychotherapy be subject to cessation, or such other relief as may be just and proper.

DATED this 29th day of March, 2000.



JAMES F. CARR, 09343*
Senior Assistant Attorney General
Business and Licensing Section

Attorneys for Board of Licensed
Professional Counselor Examiners

1525 Sherman Street, 5th Floor
Denver, Colorado 80203

Telephone: 866-5283
AG Alpha No. RG PC DLLRK
AG File No. RLJC0044